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Application No. 16/156,509

Confirmation No. 1030

Applicant Donald L. Baker

Filed 10/10/2018

Customer No. 116309

Mail Stop Dept. of Commerce OIG
Mail Stop, Mr. Andrei Iancu, Director, USPTO
Mail Stop, Mr. Drew Hirshfeld, Office of the Commissioner
Mail Stop 2837, Mr. Elvin G. Enad
Mail Stop 3655, Mr. Robert Hodge
Mail Stop 3649, Mr. Daniel Swerdlow
Commissioner for Patents
PO Box 1450
Alexandria VA 22313-1450

Statement on New Material

It occurs to me that I forgot to include an explicit Statement on New Material in the Response dated 2019-06-07, found repeated below starting on page 2, less attachments. This amends that error. I submit that the clearly stated concept of scalable circuitry in the Specification allows the inclusion of descriptions of the circuit at other scales, such as $J = 2$ pickups, as included in the New Claim 13. Therefore, the previously submitted response, dated 2019-06-07, contains no new material. If the Office objects to that, I shall be willing to put the question before a Federal District Court Judge. Whom I would hope has higher standards of evidence and proof than the USPTO.

Sincerely,

/Donald L. Baker/ Ph.D. retired
4203 S 109th E Ave #237
Tulsa OK 74146
918-504-4123

Date 2019-06-10

Appl. No. 16/156,509
Response to Final Rejection of May 22, 2019
Dated June 7, 2019

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Please find attached:

Extract from cover page of suit regarding NPPA 15/917,389 and Your Options,
page 2

Comments and Responses to Final Rejection of 5/22/2019, staring on page 3.

Observations on irregular paths of responsibility, staring on page 10

Time to Respond, starting on page 11.

Amendments to the Claims, submitted in file **NPPA-b5-a6-HB-variable-gains-claims-marked.pdf**, submitted via **EFS**

A copy of my ADA Complaint against the USPTO, submitted in a file **ADA-accommodation-complaint-against-the-USPTO.pdf**, submitted via **EFS**

Sincerely,
/Donald L. Baker/ Ph.D. retired
4203 S 109th E Ave #237
Tulsa OK 74146
918-504-4123

Date 2019-06-07

Appl. No. 16/156,509
Response to Final Rejection of May 22, 2019
Dated June 7, 2019

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF OKLAHOMA

FILED

MAY 28 2019

Mark C. McCartt, Clerk
U.S. DISTRICT COURT

Donald L. Baker

-against-

1. Andrei Iancu, Director USPTO;
2. Drew Hirshfeld, Comm for Patents, USPTO;
3. Robin O. Evans, Dir, Tech Center 2800, USPTO;
4. Elvin G. Enad, Supervisory Patent Examiner, Art Unit 2837, USPTO;
5. Marlon T. Fletcher, Primary Patent Examiner, Art Unit 2837, USPTO

**Complaint and Request For
Injunction**

Case No. **19 CV 289 CVE - FHM**
(to be filled in by the Clerk's Office)

Extract from cover page of suit regarding NPPA 15/917,389

Your Options

Option A: You, Mr. Swerdlow and his Office, start behaving like decent human beings, and cooperate with me to bring NPPA 16/156,509 to a successful conclusion. I suggest that the Patent Office start by honoring my request for accommodation of disabilities and rescind its Final Rejection, reopening prosecution of this NPPA. Not to mention finding where it left its competence and honesty.

Option B: There may be enough evidence to convince a Federal Court that, having no apparent skills in the field of this invention, and thus having no grounds for rejecting claims on the basis of science, Mr. Swerdlow has deliberately, constructively and prejudicially rejected this application on the basis of false interpretations of the MPEP and the facts, plus his imagination of what those with skills in this technical field can understand. In this Option, I file another suit in the same Federal District Court, against Director Iancu down to Mr. Swerdlow, and move to join it with the first suit. In which I

will submit to the Court that, among other things: 1) The Court would not appreciate it if Mr. Swerdlow, had he the power, should start vacating Judges' decisions on the basis that **He** could not see how lawyers and other Judges could understand them, and/or that they had misplaced their "periods"; 2) The Court would not appreciate it if Mr. Swerdlow, after demonstrating his lack of knowledge in legal matters and vacating their decisions, should cut them short, threaten their work and future livelihoods, and proclaim that **He** might do them favor of continuing to speak with them, even though they had no right to expect it.

In either circumstance, this response will be made available to the NDOK U.S. District Court as background for the case, to demonstrate the need for judicial supervision.

Comments and Responses to Final Rejection of 5/22/2019

It's not a particularly smart thing to demonstrate your ignorance of someone's field so thoroughly, and then turn around and try to damage one's intellectual property and crush one's dreams, acting as if you have done one great favors. Particularly if your Office and colleagues have already done so using junk logic, junk science and junk engineering. Not to mention making false claims of missing paperwork, and attempting to get one to insert fatal language into one's patent applications. It not only stinks of fraud, it is fraud, which is actionable in Federal Courts. Where one may also point out that irresponsibly employing those with no apparent skills in the fields they pretend to examine, and allowing them to "decide" what people with skills would find "obvious", begs arbitrary, capricious and demonstrable speculation, fantasy and fabrication.

"Periods", page 10 of Final Rejection

On page 10, Mr. Swerlow states:

Claims 1, 5, 6, and 9-11 are objected to because of the use of periods. Per MPEP 608.01(m): Each claim begins with a capital letter and ends with a period. Periods may not be used elsewhere in the claims except for abbreviations. See *Fressola v. Manbeck*, 36 USPQ2d 1211 (D.D.C. r995).

The claims in question use mathematical decimal points and ellipses in their proper

context. As such, they are not “periods”, and do not require amendment. I explained this to our Maintenance man at the apartments where I live, who has not to my knowledge attended college, and he stated of Mr. Swerdlow’s contention, “That’s retarded.” I might expect a more polite response from a Federal Judge, when I explain how Mr. Swerdlow apparently intended to kill a patent application on the basis of his untutored interpretation of misplaced “periods”.

Piezoelectric sensors, page 11 of Final Rejection

Piezoelectric sensors are commonly mentioned in electric guitar patents. Of the U.S. Patents I have searched and saved for reference, piezoelectric sensors are mentioned in U.S. Patents 2,964,985, 3,602,627, 4,817,486, 6,781,050, 7,145,063, 7,276,657, 8,324,495, 8,853,517, 8,969,701, 9,196,235 and 9,640,162 without showing in the drawings as anything more than a sensor input connection, or preamp input block. U.S. Patent 8,217,254 shows 3 or more piezo sensors, without specifying any humbucking arrangement. U.S. published Patent Applications 2005/0150364A1, 2006/0011051A1, 2007/0251374A1, 2009/01308233A1, 2010/0208916A1, 20120024129A1, 2012/0036983A1, 2014/0150630A1 and 2014/0245877A1 all mention piezoelectric sensors one or more times. But of these patents and applications that mention piezo sensors, even the ones that address humbucking switching circuits, none combine piezo sensors with humbucking, or connect to it.

Of my Provisional Patent Applications, 61/861,800, filed 08/02/2013 mentions a number of sensors, including piezoelectric (US Patent 9,401,134), as does 62/522,487, filed 06/20/2017 (NPPA 15/917,389), and 62/599,452, filed 12/15/2017, which specifically mentions piezo sensors as those which can benefit from the principles in this NPPA, 16/156,506. My NPPA 15/616,396, granted a U.S. Patent 10,217,450, specifically mentions piezo and other sensors as benefiting from the principles involved. My NPPA 16/139,027, allowed 09/22/2018, specifically mentions applying humbucking principles “to piezo-electric and other vibration sensors”.

This NPPA 16/156,509 identifies in three different places, pages 3, 13 and 17, cites

the possibility of using piezo-electric and other sensors in this application. In particular, they can be simply and directly substituted for the electromagnetic pickup coils in Figs. 1 to 6, 10 to 12, 15, and 22, so long as the same principles of hum cancellation are observed. Once a competent Electronics Engineer sees and understands the principles, this becomes obvious.

In this instance, I am the expert witness, and would appear as such in Court. So far as I know, yet to be truly disputed by any patent examiner, I am the first and only inventor to connect piezo and other sensors to this kind of humbucking sensor arrangement. So far as I know, all previous mentions of humbucking guitar sensors refer **only** to electromagnetic coils.

“Comprised of”, page 11 of Final Rejection

I consulted the following sources on the matter:

<https://legal-dictionary.thefreedictionary.com/comprised>

<https://legal-dictionary.thefreedictionary.com/comprise>

<https://www.dictionary.com/browse/comprising>

<https://www.merriam-webster.com/dictionary/comprise>

<https://www.merriam-webster.com/dictionary/comprised%20of>

<https://en.oxforddictionaries.com/definition/comprise>

<https://dictionary.cambridge.org/us/dictionary/english/comprise>

<https://www.macmillandictionary.com/us/dictionary/american/comprise>

One source claimed that “comprised of” has been in use for hundreds of years. Several used “comprised of” in example sentences. One or two noted that some linguists prefer “comprising” as the “more correct” version. It may be different in Britain, but on this side of the Atlantic, in common American English, several parts comprise a whole, a whole is comprised of several parts, and comprising, not being in general use, leaves one wondering which end has the whole. But in no case could “comprised of” be confusing to any literate person who knows the word “comprise”. That argument that it is

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Dated June 7, 2019
confusing or vague is specious.

But since the Office is so dead set on using the word “comprising” replacing “comprised of” with “comprising of” should settle the matter.

If it does not, one can ask a Judge for his opinion. And one would point out that such nit-picking over quirky traditions have nothing to do with whether an invention is novel or useful, and have no connection to STEM standards whatsoever. One might also say that elevating quirky traditions to the level of rejecting claims has only a few practical uses: 1) ensuring billable hours for lawyers who are educated in the quirks and are paid to intercede for those who are not (a practice that goes back to the Middle Ages in the purchase of indulgences from priests to get into Heaven); 2) the legerdemain of distracting notice from an examiner’s lack of knowledge in the field he examines; 3) creating artificial barriers to allow rounds of the needless paper designed to discourage those who cannot afford the lawyers in (1); and 4) using (3) to produce a huge backlog in applications, which in turn justifies claims of overload which help to enhance (2).

One could expect that the depth of respect scientists and engineers have for such practices approaches the level of a puddle of piss on a sidewalk on an egg-frying day. One would have to ask what level of respect Federal Judges have, after pointing out that these practices seem intended to separate USPTO Customers who are independent scientists and engineers from patent protection for their intellectual property.

Claim limited by recitation, page 12 of Final Rejection

“exemplary language which makes unclear whether the claim is limited by recitation”

Considering the common dictionary definition of “exemplary”, [1. worthy of imitation; 2. warning] (The Random House American Dictionary, ISBN0-679-73330-2), the phrase “exemplary language which makes unclear” is self-contradictory and at best unclear.

“especially the vibrations of musical instruments”

My provisional and non-provisional applications in this family, starting with U.S.

Patent 9,401,134 and on, have repeatedly claimed usefulness with several stringed instruments, and at times wind and percussion instruments. The principles of these sensors and circuits can be applied to any physical object that vibrates, including rotating machinery and rocket engines, should the need arise, but I settled for musical instruments. Patenting this invention for musical instruments will then reduce the allowability of similar patents in other areas, simply because the engineering applications will then be obvious.

“preferably with input impedances orders of magnitude higher than the natural lump impedances of said sensors”

Make that ~~lump~~ lumped. This is no mystery to degreed Electrical Engineers, and was stated merely for the benefit of non-engineers. Since the days of vacuum tubes, high amplifier input impedance has almost always been preferable. The only circumstance in which I can recall where it is not involves an amplifier at the end of a cable, waveguide or other physical transmission medium, where matching input impedance perfectly to the cable or waveguide impedance eliminates generally undesirable electromagnetic reflections, which waste power, and ensure that the power and signal losses at the amplifier input will be no more than one-half.

This demonstrates the value of having patent examiners who know the field, and have less penchant for rejecting claims on the ignorance of concepts they have never studied.

“such as represented by J-1 scalars, s, u, v, ...”

Well, bless his little heart. He doesn't know the concepts of scalability and infinite series. Let's start with this example:

$$\sin x = x - \frac{x^3}{3!} + \frac{x^5}{5!} - \frac{x^7}{7!} + \dots$$
$$\cos x = 1 - \frac{x^2}{2!} + \frac{x^4}{4!} - \frac{x^6}{6!} + \dots$$

From page 349, CRC Standard Math Tables, 26th Ed., 4th printing, 1983 CRC Press, Boca Raton, FL

This also demonstrates the proper use of mathematical ellipses, which Mr. Swerdlow so quaintly calls too many “periods”. Note that these series expansions for sine and cosine are distinctly different, and not equivalent merely from the use of the ellipses. Note also that any engineering student, having studied such things, knows that the next two terms of the sine series are $(+ x^9/9! - x^{11}/11! + \dots)$, and the next two terms of the cosine series are $(+ x^8/8! - x^{10}/10! + \dots)$. And I don’t even play Sudoku.

An engineering student also knows that an infinite series is scalable, that using only the first term has little practical use, and that the terms are not calculated to infinity because our technology doesn’t go that far, yet. Such series are calculated to the number of terms needed to achieve a level of error that is acceptable in practice, which is a necessarily nebulous term involving “engineering tradeoffs”, a judgmental balance between energy, economy and available technology.

In physical circuits and devices, Mr. Swerdlow is demanding the equivalent of setting an upper boundary on the number of pixels in a television screen, allowing another to claim a patent just by building a bigger one.

The type of circuit presented in this invention is also scalable, and the minimum useful circuit of this type has 2 pickups, 1 differential amplifier and no need for a summer, as any electronics engineer, having seen and understood the circuit, would understand. The maximum size depends only upon technology, hence the use of “s, u, v,

...”. The minimum circuit is likely to have little practical use, since it doesn’t provide any more than the setting of volume for two pickups in series. It can provide more than one tone only in conjunction with the invention of a single-coil pickup with a reversible magnet in NPPA 15/917,389. It fits within the bounds of Claim 1 because one only needs to subtract 3 parts, a pickup, a differential amplifier and a summing amplifier, to get it. So Claim 13 (New) has been added to make that point.

Furthermore I do not want any patent troll to make those rather obvious and logical subtractions and then claim that he or she has the more basic invention, filing a suit to contest mine.

Therefore, no correction is necessary beyond the addition of Claim 13.

In the matter of what may be “confusing” to electrical/electronics engineers in this matter, I am the expert witness, not Mr. Swerdlow. From what I’ve seen so far, I would not hire a patent examiner to teach electronics, any more than a Judge would hire me to defend him in a murder case.

“at least 100 times greater”, page 14

Mr. Swerdlow should know better. That kind of language leaves the patent open to contest. “100” is not a magic number. There is little practical engineering difference with the numbers 99 or 80, or, although I wouldn’t care to go that far if I could do better, even 50.

Other corrections

Claims 1, 9, 10 & 11 are Currently Amended, and presented with strikeouts and underlines representing changes from the claims submitted with the EFS ID 35828792, dated 25-APR-2019.

Unless I missed seeing something else, Claims 10 & 11 are amended merely to change “comprised of” to “comprising of”.

Changes to Claim 1:

b. J-1 number of amplifier or amplifiers with + and – differential inputs, preferably with input impedances orders of magnitude higher than the natural ~~lump~~ lumped impedances of said sensors, and

e. iv. ~~no 2 of said sensors may be connected to the same 2 of said differential amplifiers, and~~

[[iv.]] using said differential amplifiers as implicit links, every said sensor must be linked to every other said sensor, and ~~conversely~~, no set of pairs of sensors can form a circular ring of links.

“lump” in 1.b was an apparent typo.

The old clause 1.e.iv no longer makes any sense to me. I do not recall exactly what I was trying to say, and think it likely that the old clause v, now made clause iv, covers it sufficiently.

The use of the word “conversely” in 1.iv no longer makes sense.

Changes to Claim 9.c :

It was a mistake to use the number 0.262946727334352, as another patent can simply change it to claim an “improvement”. And likewise in specifying “root-sum-squared” error. There are several if not many ways to calculate error, depending on engineering decisions and trade-offs, and specifying a single method would allow another patent to merely use a different one and claim an “improvement”.

Labels on the Claims have been changed to “Currently Amended”, “Previously Presented” and “New”, without other marks.

Observations on irregular paths of responsibility

As noted elsewhere, Mr. Swerdlow, in Art Unit 3649, claims a supervisor, Mr. Hodge, not of his Art Unit, but in a separate Art Unit, 3655. And Mr. Swerdlow’s Final Rejection

has been returned not through his Technical Center, 3600, but through TC 2800, to which all my previous applications have been assigned. It looks like Art Unit 2837 farmed my application out to someone it felt better equipped to crush it.

It looks crooked on the face of it. Especially since your Office has demonstrated its will and capacity for trying to get me to insert fatal language in my applications, misrepresenting my paperwork as incomplete, refusing to explain how to correct paperwork in plain English, misrepresenting the need for additional drawings and descriptions, and evaluating my applications using junk logic, junk science and junk engineering, delivered by people with no apparent skills in my field.

Further, at least one patent examiner has falsified prior art in order to reject claims, which your Office dismissed as a mere “disagreement” between an examiner and an applicant. Your rejections of Pro Se claims rate right up there with the kind of phony Doctor who refuses to treat a broken leg with a closed fracture on the basis that he can’t see the broken ends of the bone. In any other venue, when you take a customer’s money and behave in that obstructive manner, refusing to deliver on services, and even damaging the customer’s legitimate property interests, it’s malpractice and fraud.

None of us have any obligation to put up with that without making complaints to the proper authorities. It is long past time for someone to bring you to the attention of a Court. Federal Courts have original jurisdiction over all Executive Agencies.

Time to respond

There is no reason why I should not be able to get a patent for new and useful inventions with the same honesty and ease that I can file taxes, even calculating depreciation and income averaging, and get a refund. If you and your administration and your colleagues had been willing to behave in an honest and helpful manner, I would have been happy and willing to be patient, explain my field and learn from you how to write better patent applications.

Now I have no patience left. You have tried and continue to try to damage my

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intellectual property. When I finish filing this document and its supporting documents via EFS, I'm going to take a little break. Then I'm going to start writing a second complaint against you to the U.S. District Court for the Northern District of Oklahoma. If I do not have a positive and useful response from you and your Office in **14 calendar days from the date of EFS submission of this Response**, I shall in due course file that complaint, along with a motion to join it to the previous complaint, as shown here on page 2.

I suggest that you resolve this matter equitably, as I have more patents to file, and will not stop just because you and your Office behave like obstructive jerks. Nor will I suffer in silence. I do not believe that the PTAB or Judiciary Committees in Congress have been effective in supervising the quality and honesty of your work product. Your deliberate bigotry and intentional obstruction towards Pro Se inventors deserve to be called out in public. This Response will appear in due course in a Project on my pages at ResearchGate.net, which you can find at:

www.ResearchGate.net/profile/Donald_Baker2/

That link and/or this document will be filed in the NDOK Federal District Case 19-CV-289-CVE-FHM, as background and supporting evidence of continuing unlawful and fraudulent conduct. Your Office is a critical part of our engineering and economic infrastructure. As such, it and you must be as blameless as Caesar's wife – in actuality – not hiding your deep flaws behind pretext, pretense and false facade of procedural infallibility.